UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. **ROBERT F. KENNEDY, JR.,** Secretary, U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES, et al. Defendants.	Case No.: CV-25-03367-PHX-SMB **CERTIFICATE OF GOOD-FAITH CONSULTATION**

I, **Kevin D. Turnage**, pro se plaintiff, certify as follows:

1. **Date of the Opposing Attorney's Email** – On **December 29, 2025 at 08:20 AM** I received an email from **Ms. Victoria H. Gray**, Assistant United States Attorney, United States Attorney's Office, District of Arizona, sent to my address kdturnage@protonmail.com. The email (attached as **Exhibit 1**) states that Defendant intends to file a motion to dismiss the First Amended Complaint under

Federal Rules of Civil Procedure 12(b)(1) and 12(b)(6), requests that I amend the complaint, and asks for an extension of time for the government to respond to the amended preliminary injunction.

2. **Plaintiff's Reply** – On **December 29, 2025, at 03:49 PM** I sent a reply to Ms. Gray (attached as **Exhibit 2**) indicating that I will file a **Second Amended Complaint** on the same day, that the government's request for an extension is moot, and that I do not intend to amend the complaint further. I also noted that I would oppose any motion to dismiss.
3. **Pro Se Status & Time Constraint** – As a pro se litigant I have no counsel and limited resources. The email from Ms. Gray gave me **less than 24 hours** to (a) review the alleged deficiencies, (b) prepare a substantive response, and (c) engage in a meaningful discussion with Defendant's counsel.
4. **Attempted Good-Faith Meet-and-Confer** – Within the limited time available I drafted and sent the reply set out in Exhibit 2. No response was received from Defendant's counsel.
5. **Result of the Meet-and-Confer Attempt** – Because Defendant provided **insufficient time** for a meaningful exchange and has not responded to my proposed conference, a full meet-and-confer could not be completed. The short-notice deadline and my pro se status prevented me from satisfying the full spirit of the meet-and-confer requirement of **Local Rule 7.2** of the District of Arizona.
6. **Filing of the Second Amended Complaint** – On **December 29, 2025,** I filed

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a **Second Amended Complaint** that supersedes the First Amended Complaint and sets forth, with greater specificity, the factual basis for all statutory claims (Title VII, ADEA, ADA, FMLA, Whistleblower Protection Act, and related constitutional and statutory violations).

7. **Conclusion** – I have made a good-faith effort to comply with Local Rule 7.2, but the **short notice** and my **lack of counsel** precluded a more thorough consultation. I respectfully request that the Court consider these circumstances in evaluating my Motion for Leave to File a Second Amended Complaint.

I declare under penalty of perjury that the foregoing is true and correct.

Dated: December 29, 2025

/s/ Kevin D. Turnage

Digitally signed by /s/ Kevin D. Turnage
Date: 2025.12.29 20:31:32 -07'00'

Kevin D. Turnage

Pro Se Plaintiff

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